



DUTY AND REST PERIOD RULES FOR RAILWAY OPERATING EMPLOYEES

APPLICATION DOCUMENT

RDIMS 19138653

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Purpose

The purpose of this document is to provide guidance in the application of the *Duty and Rest Period Rules for Railway Operating Employees* (DRPR) which were approved by Transport Canada in November 2020, with a phased-in approach, and with full implementation by November 2025. The appendix collects a series of questions and scenarios relating to sections of the rules which help contextualize and expand on the application.

If a question or situation that is not addressed in this document arises, contact Transport Canada for clarification.

Transport Canada Contact Information

- Telephone: Toll-free: 1-844 897-7245
- E-mail: railsafety@tc.gc.ca
- Web site: <http://www.tc.gc.ca>

PART A: General Provisions

1. Short Title

- 1.1 These Rules may be referred to as the “Duty & Rest Period Rules”.

2. Scope

These Rules apply to railway companies and the employees of those companies.

- 2.1 These Rules define the requirements related to the hours of work and rest periods for employees who are in positions designated critical to safe railway operations and are defined as employees in this rule.

Application: The Rules apply to employees who are working in a position designated as a Safety Critical Position and are defined as employees in this rule.

[Link to Appendix](#)

3. Definitions

- 3.1 The following definitions apply in these Rules:

administrative duties means paperwork, filing, job briefings, reporting and work related to human resources obligations; (*tâches administratives*)

[Return to Section 7](#)

accommodation means a single-occupancy room with a bed that has a lockable door and other features as determined by the railway company’s process on accommodation under its fatigue management plan; (*hébergement*)

bargaining agent means a person designated to represent unionized employees to whom these Rules apply, or, if there is no bargaining agent, the employees to whom these Rules apply or a representative selected by employees to whom these Rules apply; (*représentants syndicaux*)

break means a period between duty-periods where the employee is not performing activity at the direction of the railway company, but does not mean a rest period; (*pause*)

commuting means an employee’s travel to the location where they report for duty when at the home terminal, or to and from the rest facility when not at the home terminal; (*navettage*)

day means a period of 24 hours beginning at the start time of the first duty period assigned to an employee as part of the employee’s cumulative duty period; (*jour*)

deadheading means the authorized transportation of an employee from one location to another at the direction of the railway company, without the employee operating railway equipment and does not include commuting; (*déplacement haut le pied*)

Application: Deadheading is the transportation of an employee, as a passenger, in a train or other vehicle authorized by the railway company.

[Link to Appendix](#)

duty period means a period of time beginning when the employee reports for duty at the location and time designated by the railway company and ending when the employee is released by the railway company from all activity including operating, administrative duties, deadheading, time over 30 minutes spent commuting from the away from home terminal to the reporting location, waiting for re-crews or transportation, training, and meetings; (*période de service*)

emergency situation means a sudden or unforeseen situation where injury or harm has been sustained, or could reasonably be sustained to employee(s), passenger(s), the public or the environment such as those involving a casualty or unavoidable accident, an Act of God, severe storms, major earthquakes, washouts, derailments or where there has been a delay resulting from a cause not known to the railway company at the time employees leave the terminal and which could not have been foreseen.

Except as outlined above, normal operating problems that are inherent in railway operations that do not constitute an "emergency", include but are not limited to:

- a. crew shortages;
- b. broken draw bars;
- c. locomotive malfunctions;
- d. equipment failure;
- e. broken rails;
- f. hot boxes;
- g. switching;
- h. doubling hills;
- i. meeting trains;
- j. train length.

It is incumbent upon railway companies to establish that excess service could not have been avoided. When an emergency situation does occur, railway companies must exercise due diligence to avoid or limit such excess service; (*situation d'urgence*)

Application: The railway company must demonstrate that the excess service could not be avoided. Extremely bad weather or remote locations are examples when a railway company may not be able to relieve a crew.

Section 7.10 requires that the railway company submit a report with TC within 3 business days if the railway company extends an employee's maximum duty period due to an emergency

situation.

[Return to Section 7](#)

[Link to Appendix](#)

employee means a locomotive engineer, conductor, trainman, yardman, pilot, operator of remote control locomotives and operator of light rail passenger equipment or any person whose preponderance of time is spent in such classifications, who is physically involved in the operation or switching of trains, engines and equipment, as well as any other person who performs such duties; (*employé*)

fatigue means a physiological state of reduced mental or physical performance capability resulting from sleep-related factors, which may impair a person's ability to safely operate railway equipment or perform safety-related duties; it is acknowledged that a similar state may result from factors not related to sleep and that these causal factors are outside the scope of the Rules (*fatigue*)

fit for duty means, for the purpose of these Rules and with respect to an employee, that their ability to operate safely is not impaired by fatigue or any fatigue-related condition and is not likely to become so impaired during the duty period; (*apte au travail*)

[Return to Section 5](#)

operating means being in control of or engaged in the operation of railway equipment or switching of trains, transfers, engines, or equipment and does not include time spent on railway equipment where the employee is not required to attend the equipment in accordance with the *Canadian Railway Operating Rules*; (*exploitation*)

remote worksite means a work location that requires an employee to travel to and remain at the location to work multiple duty periods due to the location's distance from an established community; limitations on the availability of transportation; and the time required to travel that distance. (*lieu de travail éloigné*)

reset break means:

- a. for freight railways companies, a continuous period free from any duty period, that lasts, at a minimum, 32 hours and includes 2 periods of 8 hours undisturbed by the company that begin and end within the period between 22:00 and 08:00; and,
- b. for passenger railways companies, scheduled days off free from any duties, unless the employees choose/voluntarily accept to work based on their fitness for duty. (*congé*)

[Return to section 10](#)

rest period means a continuous period free from any duty period that begins:

- a. if at the home terminal, when the employee is released by the railway company from all activity at the end of a duty period; or
 - b. if not at the home terminal, when the employee arrives at the rest facility; and
- ends when the employee reports for duty at the location and time designated by the railway company; (*période de repos*)

split duty means a scheduled sequence of duty periods with a break in between, where a break of a minimum of 15 minutes away from the operating environment, not intended as a nutrition or hygiene break is afforded to the employee. (*service fractionné*)

PART B: Key Principles

4. Shared Responsibility

4.1 Managing fatigue is a shared responsibility between a railway company and its employees.

4.2 Railway companies are responsible for:

- a. managing employees in a manner that provides them with adequate sleep opportunity in order to return to work fit for duty;
- b. developing and implementing a fatigue management plan consistent with fatigue science and the requirements of this Rule;
- c. providing scheduled employees with their schedule in accordance with this Rule;
- d. providing employees with the training required under this Rule;
- e. providing accommodations in accordance with this Rule;
- f. recording duty period time data; and
- g. verifying the company's compliance with these Rules.

4.3 Employees are responsible for:

- a. being fit for duty; [Definition: Fit for duty](#)
- b. making effective use of rest periods and breaks in order to obtain adequate rest;
- c. in accordance with the railway company's fatigue management plan, reporting:

- safe
- (i) before or during a duty period, when they believe they are fatigued or not fit for duty; and
 - (ii) any situation that may present a fatigue-related risk that may affect railway operations;
- d. reporting all duty period time;
 - e. completing all training provided by the railway company under this Rule and applying the principles of the training;
 - f. complying with the railway company's fatigue management plan; and
 - g. complying with these Rules.

5. Fitness for Duty and Operating While Fatigued

- 5.1 An employee shall not commence a duty period unless the employee believes themselves to be fit for duty in accordance with the fatigue self-assessment method found in the railway company's fatigue management plan and has:
- a. obtained at least 5 hours of sleep in the 24 hours prior to commencing the duty period;
 - b. obtained at least 12h of sleep in the 48 hours prior to commencing the duty period; and
 - c. assessed themselves as scoring a 7 or lower on the Karolinska Sleepiness Scale.

Application: An employee must not accept a duty period if the employee does not believe themselves to be fit for duty in accordance with the fatigue self-assessment method found in the railway company's fatigue management plan and any of the following conditions are not met:

- obtained at least 5 hours of sleep in the previous 24 hours; and
- obtained at least 12 hours of sleep in the previous 48 hours; and
- assessed themselves as scoring 7 or lower on the Karolinska Sleepiness Scale.

[Definition: Fit for duty](#)
[Link to Appendix](#)

- 5.2 Where an employee cannot commence a duty period in accordance with section 5.1, the employee shall report to the railway company that they are not fit for duty before the beginning of the duty period in accordance with the railway company's fatigue management plan.

Application: An employee is required to report to the railway company they are not fit for

duty before the beginning of a duty period.

[Link to Appendix](#)

- 5.3 The railway company shall not require any employee to operate railway equipment, and an employee shall not operate railway equipment, if the employee advises the railway company that they are not fit for duty before the beginning of the duty period in accordance with the railway company's fatigue management plan.

Application: The railway company may not require an employee to operate railway equipment if the employee has advised the railway that they are not fit for duty before the beginning of a duty period.

The employee may not operate railway equipment if they have advised the railway that they are not fit for duty before the beginning of a duty period.

[Link to Appendix](#)

- 5.4 In accordance with the railway company's fatigue management plan, after beginning a duty period, if an employee believes they are fatigued in a manner that may affect safe railway operations, the employee shall immediately report to the railway company personnel designated for this purpose in the railway company's fatigue management plan and the railway company shall follow the process found in its fatigue management plan to respond to the report.

Application: After the beginning of the duty period, when the railway receives a report from an employee that they are fatigued in a manner that may affect safe railway operations, the railway must follow the process found in the fatigue management plan.

[Link to Appendix](#)

- 5.5 In accordance with the railway company's fatigue management plan, after beginning a duty period, if an employee believes they are not fit for duty, the employee shall immediately report to the railway company personnel designated for this purpose in the railway company's fatigue management plan and the railway company shall follow the process found in the fatigue management plan to respond to the report.

Application: After the beginning of the duty period, if an employee believes that they are not fit for duty, the employee must immediately report to the railway. Once the report is received from the employee, the railway must follow the process found in the fatigue management plan.

[Link to Appendix](#)

- 5.6 Every employee shall be permitted to report in accordance with sections 5.2, 5.4 and 5.5 without fear of reprisal.

6. General

- 6.1 If an employee who is assigned a duty period by a railway company becomes aware that the assigned duty period would result in the maximum duty period or maximum cumulative duty period time being exceeded, the employee shall notify the railway company immediately.

Application: An employee must notify the railway company immediately when an assigned duty period that may result in the maximum duty period or maximum cumulative duty period time being exceeded.

[Link to Appendix](#)

- 6.2 Where a railway company receives and substantiates a notification under 6.1, it shall ensure that the provisions of this Rule are not violated.

Application: When the railway company is advised that a duty period may result in regulatory limits being exceeded, the railway must ensure that the maximum duty period or maximum cumulative duty period limits are not violated.

[Link to Appendix](#)

- 6.3 Each employee shall have a designated home terminal.

Application: Each employee will have a designated home terminal. The home terminal will be used in the application of minimum rest periods and reset breaks.

[Link to Appendix](#)

- 6.4 A railway company shall describe its approach to scheduling in the FMP. The approach could include one or more of the following:
- a. Fixed: Employees will be required to work scheduled days and scheduled hours.
 - b. Spareboard or Pool: Employees will be required to work subject to a call for duty at different times. May be subject to calling windows or not.
- 6.5 For scheduling approaches that have scheduled working days and hours, in accordance with its fatigue management plan, a railway company shall provide as much advance notice as is reasonably practicable.
- 6.6 For scheduling approaches that do not have scheduled working days and / or hours:
- a. a railway company shall make real-time information on current train line-ups and crew line-ups available to employees, as applicable;
 - b. a railway company shall make the information required under a) available in a manner that permits an employee, to obtain it remotely and on-demand;

- c. an employee shall use the information provided under a) to view forecasted schedules, including changes; and
- d. a railway company shall contact the employee to confirm the duty period start time in accordance with company procedures.

Application: For employees who do not have scheduled working days and/or hours, the railway company must make real-time train and crew line-up information available to employees. This will allow employees to make effective use of rest periods and breaks to ensure they are fit for duty when called.

[Link to Appendix](#)

PART C: Duty Periods and Rest Periods

7. Maximum Duty Period, Emergency Situations, Deadheading and Re-crews

7.1 An employee's maximum duty period is 12 hours.

Application: An employee's duty period may exceed 12 hours, when deadheading at the end of a duty period, waiting for re-crews or transportation at the end of a duty period, completing administrative duties, providing information to subsequent crews to maintain safe railway operations, or in an emergency situation.

[Link to Appendix](#)

- 7.2 Where an employee's duty period is scheduled to last more than 10 hours and to end between 00:01 and 06:00, an employee shall report to the railway company, in accordance with the company's fatigue management plan, that they believe themselves to be fit for duty in accordance with the fatigue self-assessment training provided by the railway company and that they have:
- a. obtained at least 5 hours of sleep in the 24 hours prior to commencing the duty period;
 - b. obtained at least 12h of sleep in the 48 hours prior to commencing the duty period; and
 - c. assessed themselves as scoring a 7 or lower on the Karolinska Sleepiness Scale.

Application: When the duty period will last more than 10 hours and end between 0001 and 0600, the employee must report to the railway company that they believe themselves to be fit for duty and have met the criteria listed in a, b, and c.

[Link to Appendix](#)

- 7.3 Where an employee's duty period is scheduled to last more than 10 hours and to end between 00:01 and 06:00, at least one of the following fatigue mitigation

measures shall be implemented for all such employees between 00:01 and 06:00, and at least two of the following fatigue mitigation measures for an employee with a Karolinska Sleepiness Scale score of 7 or higher during that same period:

- a. increased communication and in-cab crew resource management between employees of safety critical behavior and decisions as specified in the railway company's fatigue management plan;
- b. increased communication between rail traffic control personnel and the employee with respect to oversight of safety critical behavior and decisions;
- c. where the employee consents, strategic use of caffeine or other energy enhancing consumables as set out in the railway company's fatigue management plan;
- d. use of controlled napping protocols, where appropriate;
- e. increased task rotation with other qualified employees, where possible;
- f. prioritize work activities to manage duty period duration, where possible; and
- g. use of approved fatigue-proofing strategies.

Application: Two of the mitigation measures listed above must be used if an employee has assessed themselves with a Karolinska Sleepiness Scale score of 7 or higher during the assessment in accordance with section 7.2.

[Link to Appendix](#)

7.4 The calculation of an employee's maximum duty period includes all duty periods regardless of whether or not the duty period occurred in Canada or the United States.

7.5 A person whose preponderance of time is not spent operating shall include any duty period, whether operating or non-operating, at the service of the railway company over the last 24 hours when calculating maximum duty period under section 7.1 or 11 or the maximum cumulative duty period time under section 9 of these Rules.

Application: All time working at the service of the railway company is included when calculating maximum duty periods and maximum cumulative duty period time.

[Link to Appendix](#)

7.6 An employee's duty period may exceed the maximum duty period by up to 45 minutes to complete administrative duties and provide information to subsequent crews to maintain safe railway operations.

Application: An employee may exceed a 12-hour duty period to complete administrative duties and provide a briefing to subsequent crews. The time to complete these duties may not exceed 45 minutes. The time completing the administrative duties is included in the calculation of the employee's maximum cumulative duty period limit.

[Definition: administrative duties](#)

[Link to Appendix](#)

- 7.7 An employee's duty period may exceed the maximum duty period for the purpose of deadheading at the end of a duty period or waiting for re-crews or transportation at the end of a duty period, provided that where the maximum duty period is exceeded by more than 4 hours, the subsequent minimum rest period is extended by the amount of time by which the duty period exceeds 12 hours, or until 08:00, whichever extension is the shortest.

Application: Employees that are required to deadhead, wait for transportation, or wait for a re-crew for more than 4 hours after the end of a maximum duty period, will have their minimum rest period extended by the amount of time the duty period was exceeded or until 0800, whichever extension is shortest.

For example, an operating crew that is released from a duty period of 17 hours (including wait time and deadheading) will have their subsequent minimum rest period extended by 5 hours or until 0800, whichever is sooner.

The time spent deadheading, waiting for transportation, or waiting for a re-crew will be used in the calculation of the employee's maximum cumulative duty period limit.

[Link to Appendix](#)

- 7.8 An employee's duty period may exceed the maximum duty period in the case of emergency situations by up to 4 hours provided that the subsequent minimum rest period is extended by the amount of time by which the duty period exceeds 12 hours or until 08:00, whichever extension is the shortest.

Application: Employees may exceed the maximum duty period by up to 4 hours in an emergency. After the end of the duty period, the employee will have their minimum rest period extended by the amount of time the duty period was exceeded or until 0800, whichever extension is shortest.

For example, an operating crew that is released from a duty period of 16 hours will have their subsequent minimum rest period extended by 4 hours or until 0800, whichever is sooner.

The total time of the extended duty period will be used in the calculation of the employee's maximum cumulative duty period limit.

[Definition: Emergency Situation](#)

[Link to Appendix](#)

- 7.9 Notwithstanding section 7.8, an employee's duty period may be further extended where there is a risk to safe railway operations, the safety of the employees, passengers or the public, if the subsequent minimum rest set out in section 7.8 is provided and additional mitigation measures are implemented in accordance with the railway company's fatigue management plan.

Application: The additional mitigation measures contained in the fatigue management plan will be implemented, if the duty period must be exceeded by more than 4 hours where there is a risk to safe railway operation, the safety of the employees, passengers or the public.

After the end of the duty period, the subsequent minimum rest period will be extended by the amount of time the duty period was exceeded or until 0800, whichever extension is shortest.

[Link to Appendix](#)

- 7.10 Any extension to an employee's maximum duty period due to emergency situations shall be documented and reported to Transport Canada within 3 business days after the end of the emergency situations and the report shall include:
- a. a description of the emergency situations and the manner in which it was resolved; and
 - b. the duty period duration worked by each employee whose maximum duty period was exceeded.

Application: Any extension to an employee's maximum duty period due to an emergency situation will be documented and reported to Transport Canada within 3 business days after the end of an emergency situation.

[Link to Appendix](#)

- 7.11 An employee's time is based on the applicable time zone at the location where the employee begins their duty period and time in effect as defined in the Canadian Railway Operating Rules.

8. Minimum Rest Period

- 8.1 An employee's minimum rest period is 12 hours at the home terminal.

Application: When an employee is released from all activity at the end of a duty period at the home terminal by the railway company, the employee must have a minimum rest period of 12 hours free from any duty period.

[Link to Appendix](#)

- 8.2 An employee's minimum rest period is 10 hours, in an accommodation, at a home

terminal that is located at a remote worksite.

Application: When an employee is released from all activity at the end of a duty period at a home terminal that is located at a remote worksite, the employee must have a minimum rest period of 10 hours free from any duty period.

[Link to Appendix](#)

8.3 An employee's minimum rest period is 10 hours, in an accommodation, when not at the home terminal.

Application: When not at the home terminal, an employee who is released from all activity at the end of a duty period by the railway company must have a minimum rest period of 10 hours free from any duty period.

[Link to Appendix](#)

8.4 Within each rest period, 8 hours will be undisturbed by the railway company.

Application: The employee's rest period cannot be disturbed by the railway company if it results in the employee receiving less than 8 consecutive hours undisturbed during the rest period.

[Link to Appendix](#)

9. Maximum Cumulative Duty Period Time

9.1 A railway company shall not assign a duty period to an employee, if the duty period would result in the employee's cumulative duty period exceeding 60 hours in any consecutive 7 days.

Application: The railway cannot assign a duty period to an employee if the duty period results in the employee's cumulative duty period exceeding 60 hours in a consecutive 7-day period, except to return to the home terminal for the purposes of a reset break.

[Link to Appendix](#)

9.2 A railway company shall not assign a duty period to an employee, if the employee's cumulative duty period would, as a result, exceed 192 hours in any consecutive 28 days.

Application: The railway cannot assign a duty period to an employee if the duty period results in the employee's cumulative duty period exceeding 192 hours in any consecutive 28 days, except to return to the home terminal for the purposes of a reset break.

[Link to Appendix](#)

9.3 Notwithstanding sections 9.1 and 9.2 a railway company may:

- a. assign a duty period that would result in an employee exceeding the

maximum cumulative duty periods established in sections 9.1 and 9.2 if it will result in the employee returning to their home terminal for the purposes of a reset break, and must file with the Minister of Transport quarterly a report on the frequency with which assigned duty periods result in the maximum cumulative duty periods exceeding the limits in 9.1 and 9.2 for the purposes of having an employee return to the home terminal for the purposes of a reset break.

- b. allow an employee to continue to work a duty period where, due to emergency situations, the employee's cumulative duty period will exceed the maximum cumulative duty period time of 60 hours in 7 consecutive days, 112 hours in 14 consecutive days or 192 hours in 28 consecutive days.

Application: Employees are permitted to exceed the 7- or 28-day cumulative duty period limits if the employee is returning to the home terminal for the purposes of a reset break or working in an emergency situation.

[Link to Appendix](#)

- 9.4 An employee shall not accept an assigned duty period that does not comply with the requirements of these Rules.

Application: The employee cannot accept a duty period if the duty period results in the employee's cumulative duty period exceeding the 7- or 28-day limits.

[Link to Appendix](#)

10. Minimum Time Free from Work

- 10.1 Freight railway companies shall provide a reset break that begins within any consecutive 7 days.

Application: The reset break will provide employees with an extended period of time free from work that encompasses two consecutive nights within any consecutive 7-day period.

[Definition: Reset Break.](#)

[Link to Appendix](#)

- 10.2 Passenger railway companies shall provide a reset break that consists of a minimum of 4 scheduled days per 2-week period.

11. Split Duty

- 11.1 Where an employee is working a split duty, the maximum duty period in section 7.1 does not apply.

- 11.2 For passenger railway companies, where a duty period is scheduled as a

short split duty, the maximum duty period for the combined two duty periods making up the split duty is 12 hours and, where the break between the duty periods is more than 3 hours, an accommodation shall be made available to the employees by the railway company.

- 11.3 For passenger railway companies, a duty period that is scheduled as a long-split duty, the maximum combined time on duty cannot exceed 16 hours. Fatigue management plans shall address the circumstances under which operating employees will be provided the option to take a break between consecutive duty periods. Employees shall be given as much advance notice as possible regarding a long split duty period in order for them to prepare in advance.

Application: Scheduled split duty assignments may be used for passenger railway operations and is comprised of two separate duty periods with a break between.

- For a short split duty, the time of the two periods may not exceed 12 hours.
- For a long split duty, the time of the two periods may not exceed 16 hours.
- The break must be a minimum of 15 minutes and if the break is scheduled to be more than 3 hours, an accommodation must be made available for use by the employees.
- The time of the break between duty periods is not included in the calculation of the duty periods or cumulative duty periods.

split duty means a scheduled sequence of duty periods with a break in between, where a break of a minimum of 15 minutes away from the operating environment, not intended as a nutrition or hygiene break, is afforded to the employee.

break means a period between duty-periods where the employee is not performing activity at the direction of the railway company, but does not mean a rest period.

[Link to Appendix](#)

PART D: Fatigue Management Plan (FMP)

12. Fatigue Management Plans – Core Elements

- 12.1 A railway company shall develop and implement a Fatigue Management Plan (FMP) that includes or references, at a minimum:
- a. a description of:
 - (i) the type of operations conducted by the railway company, including size, complexity, traffic density, traffic patterns; and

Application: Information about the type of operations should include the following:

- freight or passenger, or both
- type of goods to be transported, including dangerous goods
- whether it is a key train and/or key route
- how many trains run each day or week

- whether the operations include yard operations and switching operations
- whether the trains run on the track of another railway (whether there is a likelihood that other rail traffic could cause delays).

- (ii) the characteristics of the territory on which the company operates, including geographic considerations.

Application: Information about the characteristics of the territory should include the following:

- whether the trains run through areas of high-density population
- whether the trains pass through mountainous terrain, flat terrain, river areas (potential for flooding) etc.
- whether poor weather can impact operations or the integrity of track and other equipment
- whether employees can be replaced if they are fatigued en route.

- b. the position of the person who has overall responsibility for its development and modification, as well as the positions of persons who will be involved in the development and updating of the FMP, including at a minimum, representatives from management, employees, and bargaining agents, if applicable.
- c. a description of the duties and responsibilities of employees who have a role in managing fatigue, including but not limited to duties relating to operations, supervision, safety management, training, risk evaluations, scheduling and call-out processes, and accident and incident investigation.

Application: The description should include the specific activities relating to managing fatigue. For example, it is not sufficient to say a job role is responsible for training. It must be identified whether they are responsible for developing training, delivering training, keeping training records etc. Another example is the responsibility for scheduling. The description must include the relevant information about responsibilities for developing the schedules, analyzing the schedules for fatigue, communicating schedules to employees, tracking duty time etc.

- d. a process for setting specific objectives that demonstrate how FMP policies, procedures or processes enhance fatigue management.

Application: Where the requirements state that a process must exist, the description of the process should include:

- which job role/s carries out the process
- in what circumstances i.e. how the process will be initiated
- how the process is carried out
- the inputs to the process
- the outputs from the process
- where and how information is recorded and communicated to others

- e. a process for setting specific targets for objectives identified in (d), along

with details on how those targets will be measured and evaluated.

Application: Targets will be specifically related to the objectives. For example, a specific percentage reduction in the objectives identified, or a specific reduction in the number of these events.

Examples of fatigue related objectives are as follows:

- reduction in accidents where fatigue is a cause or a contributing factor in a year
- reduction in number of employees who reported fatigue in a year

- f. a process for reviewing and updating the objectives and targets required by paragraph (d) and (e) on an annual basis.
- g. a process to monitor, evaluate and address the effectiveness of the FMP, including:
 - (i) a method for reviewing the FMP, including the frequency of the review and the evaluation tools that will be used;
 - (ii) the roles and responsibilities of position of persons involved in performing the evaluation;
 - (iii) the process for recording and addressing issues of significance identified as part of the evaluation; and
 - (iv) ongoing monitoring considerations.
- h. a process that:
 - (i) defines how the FMP is reviewed and, if necessary, updated, both periodically and for cause;

Application: The word “periodically” in this case means a prescribed frequency such as, on an annual basis. The phrase “for cause” means as a result of a trigger other than the annual review or an accident/incident investigation. Examples of other triggers include near misses where fatigue could have contributed, or routes that employees report as particularly fatiguing (i.e., they take longer than the schedule specifies).

- (ii) identifies the positions of persons responsible for reviewing and, if necessary, updating the FMP; and
- (iii) makes the FMP available to employees.

Application: The railway company will have a process to make the fatigue management plans available to employees. For example, the company intranet may have the FMP posted for employees.

12.2 The railway company shall notify the Minister of any material revision to

its FMP, no later than 30 days following the revision.

13. Fatigue Management Plans - Elements in Support of the Duty and Rest Period Rules

- 13.1 Taking into consideration the requirements prescribed in Part B and C of these Rules, the FMP shall include or reference a process to:

Application: A description of the process must be included in the FMP, or the FMP may reference another document which contains a description of the process. The document being referenced must already exist and must explicitly address the fatigue related issues that are defined in these requirements.

- a. track and record all employee duty period hours, including their total time:
 - i. spent on activities included in the definition of “duty period”; and
 - ii. spent in accordance with any period or activity under section 7.
- b. manage emergency situations that require an employee to exceed their maximum duty period, including details regarding:
 - i. the methods by which an employee’s duty period time during the event will be recorded and managed;
 - ii. the methods by which the subsequent rest period will be adjusted for any employee who is affected by emergency situations;
 - iii. the mitigation measures that will be put in place to manage fatigue-related risk in the case that the duty period needs to be extended under section 7.9; and
 - iv. the recording and retention requirements regarding the event.
- c. manage deadheading at the end of a shift, including a description of:
 - i. the method by which an employee’s time spent deadheading will be recorded and managed in order to respect 7-day, 14 day and 28 day maximum cumulative duty period time limits;

Application: The maximum duty period limit of 12 hours may be exceeded if deadheading at the end of a duty period. The additional time spent deadheading at the end of a duty period must be recorded as duty time for the purposes of the 7 day and 28 day limits. The fatigue management plan must include a description of the process to ensure that 7-day and 28-day cumulative duty period time limits are not exceeded.

Note: The mention of a 14-day cumulative limit is an error and is not included in the rules.

- ii. the methods by which an employee's subsequent rest period is adjusted or not, based on the total time spent deadheading at the end of a duty period; and

Application: The fatigue management plan must contain, or refer to, the process used to ensure employee rest periods are adjusted in accordance with the requirements of section 7.7 of the rules.

- iii. the positions of persons responsible for the deadheading process, including the limits and mitigations described in (i) and (ii).
- d. report by employees that they are not fit for duty prior to a duty period that takes into account attendance management and contains:
 - i. measures to ensure that employees are protected from adverse actions that would discourage reporting, consistent with the railway company's safety management system Process for Reporting Contraventions and Safety Hazards;

Application: If the process exists within a railway's SMS, then a reference to this section of the SMS must be included. This reference can also be used to address protection from adverse actions when reporting fatigued during a duty period and reporting unfit for duty during a duty period.

- ii. measures to support reporting by employees who believe they are not fit for duty prior to a duty period;

Application: Even though a method exists and there is a procedure to describe the process for reporting, there should also be ways to make employees aware of the procedures, and reinforcement and encouragement of the practices, for example training and information sessions. This information can also be used to address requirements relating to reporting fatigued during a duty period and reporting unfit for duty during a duty period.

- iii. a method for an employee to perform fitness for duty self-assessments;
- iv. procedures describing how employees report they are not fit for duty;
- v. the positions of persons involved in the process and the role and responsibility of each such person;
- vi. the subsequent actions that are triggered as a result of such a report; and

Application: The fatigue management plan will have the actions to be taken when an employee reports that they are not fit for duty.

- vii. recording requirements with regards to a fitness for duty report.
- e. report by employees that they are fatigued in a manner that may affect safe railway operations during a duty period that takes into account attendance management and contains:
 - i. measures to ensure that employees are protected from adverse actions that would discourage reporting, consistent with the railway company's safety management system Process for Reporting Contraventions and Safety Hazards
 - ii. a method for an employee to perform fitness for duty self-assessments;
 - iii. the procedure by which an employee reports being fatigued in a manner that may affect safe railway operations;
 - iv. the positions of persons involved in the process and the role and responsibility of each such person;
 - v. the subsequent actions that are triggered as a result of such a report;

Application: The fatigue management plan will have the actions to be taken when an employee reports that they are fatigued in a manner that may affect safe railway operations during a duty period.

- vi. description of measures to allow the employee to continue to operate safely; and
- vii. recording requirements with regards to a fitness for duty report.
- f. report by employees that they are not fit for duty during a duty period, that takes into account attendance management and contains:
 - i. measures to ensure that employees are protected from adverse actions that would discourage reporting, consistent with the railway company's safety management system Process for Reporting Contraventions and Safety Hazards
 - ii. a method for an employee to perform fitness for duty self-assessments;
 - iii. the procedure by which an employee reports that they are not fit for duty during a duty period;

- iv. the position of persons involved in the process and the role and responsibility of each such person;
- v. the procedure used to guide the railway company management with respect to subsequent actions to be taken, including whether to remove the employee from duty and substitute a replacement employee;
- vi. the procedure used to communicate the actions to be taken to the employee, and to get the employee's confirmation that they have received the instructions;
- vii. the positions of persons involved in the process and roles and responsibilities of each such person involved in implementing the actions, including in the case of employee replacement;
- viii. the alternate actions that are available when employee replacement is not available due to a remote location or other reason;

Application: An example of an alternate action could be stopping the train in an available siding for the employee to have a short break.

- ix. the timeframes within which actions must take place; and

Application: This is a statement that defines the timeframes for mitigation measures to be implemented. For example, the crew may be instructed to stop the train immediately, and further mitigating actions may be provided to the crew after that.

- x. recording procedures relating to the decisions taken and subsequent actions.
- g. ensure a minimum of 8 hours of the employees assigned rest period will be undisturbed by the company, including details regarding:

Application: The intent of this requirement is to ensure that employees are provided the opportunity to obtain 8 consecutive hours sleep in the 12 hours off duty (required by the rules). It should be stated which of the 12 hours off duty are the 8 hours of undisturbed rest. For example, a railway may state that middle 8 hours of the 12 hours off duty are designated as the 8 hours of consecutive undisturbed rest.

- i. company call out procedures during employee rest periods, both at the home terminal and at the away from home terminal;

Application: The call out time implemented by the railway should be stated for both the home terminal and the away from home terminal, and the method of call out should be described (who contacts the employee and how).

- ii. how changes to call out times or methods are initiated, both by the employee and the railway company; and

Application: It should be stated whether an employee can request a shorter call out time based upon the location of their residence (close to their home terminal). It should also be stated whether the railway can change call out times, and if so, in what circumstances and how.

- iii. any specific circumstances when employee rest period could be disturbed and the subsequent mitigations that will be considered in order to help employees remain fit for duty during their subsequent duty period.
- h. schedule employees, including details on how a railway company will:
 - i. provide advance notice of a schedule to scheduled employees;
 - ii. access and use real-time information regarding employees' hours of duty periods and rest periods;
 - iii. manage the assignment of a duty period to an employee in order to remain compliant with these Rules;
 - iv. manage significant change to the schedule, including how employees will be notified, the positions of persons involved in the process and how any necessary mitigating actions will be managed prior to, and following, the revised duty period.
- i. manage employees for scheduling approaches that do not have scheduled working days and / or hours, including how railway companies provide tools to provide real-time information to employees on when they will be called for a duty period.
- j. determining the requirements for selecting and managing accommodations, including:

Application: There should be a process outlined for selecting and managing the accommodations at away from home terminals.

- i. considerations and standard attributes for selection of facilities with best efforts to ensure that the room is:
 - A. a single-occupancy room with a bed and a lockable door;
 - B. subject to a minimal level of external noise; and
 - C. has facilities to control the levels of temperature and light;
- ii. measures to mitigate rest disruptions; and

- iii. a process for reporting and handling of urgent and emergent information on how reports should be made.

Application: A process is required for employees to report any inadequacies in the accommodation, including urgent concerns that may adversely impact upon the employee's ability to rest, and there must also be a process for the railway to address those concerns.

- k. conduct incident and accident investigation where fatigue may be a contributing factor, including procedures for:
 - i. collecting, recording and storing information about the incident or accident, including:
 - A. the time of day of the incident or accident;
 - B. when the duty period started;
 - C. hours into duty period when accident occurred;
 - D. how many hours employees had been awake;
 - E. hours of duty periods and rest periods the employees had in the past 24 hours and past 7 days;
 - ii. analyzing results of the investigation;

Application: There should be a process for the identification of the root causes in addition to the direct causes, to ensure that similar incidents do not occur in the future. The results of the investigation should be analyzed to identify all groups of employees who could be impacted.

- iii. developing corrective measures, where appropriate, and for measuring their effectiveness;

Application: The corrective measures should directly address the causes and root causes and should be assigned to the appropriate part of the organization to implement. A date for implementation should be assigned, a process identified to follow up on implementation, in addition to the identification of a timeframe and method for assessment of whether the corrective measures are successful.

- iv. communicating the results of the investigation with railway company management and other relevant stakeholders.
- l. train employees on these Rules and on fatigue in the rail industry, including a description of:
 - i. initial and refresher training, and their frequency;
 - ii. the methods for delivering the training;

Application: This refers to whether the training will be classroom training, computer-based

training, simulator training, a combination of these methods or another method.

- iii. the content of the training, that cover at a minimum:
 - A. causes and risks related to fatigue;
 - B. symptoms of fatigue;
 - C. fatigue in operational circumstances, including the consequences of fatigue;
 - D. fatigue management and alertness strategies;
 - E. fitness for duty self-assessments using a recognized method, including the Karolinska Sleepiness Scale and the employee's prior work/sleep information; and
 - F. mitigation of fatigue.
- m. designate home terminals, including outposts and remote worksites

Application: The fatigue management plan must contain, or refer to, the process used to specify an employee's designated home terminal. This information is required for the application of minimum rest periods.

PART E: Phased in Compliance

14. Compliance

- 14.1 Part D of these Rules comes into effect 12 months after the date on which they are approved by the Minister. However, any railway company may voluntarily comply with Part D of these Rules at an earlier date upon notice to the Minister.
- 14.2 Parts A, B and C, with the exception of section 5, come into effect 30 months for freight railway companies and 48 months for passenger railway companies after the date on which they are approved by the Minister. Section 5 of these Rules comes into effect 24 months after the date on which they are approved by the Minister. Any railway company may voluntarily comply with Parts A, B and C of these Rules, in respect of certain employees, at an earlier date upon notice to the Minister, in which case the railway company is relieved of the obligation to comply with the Work/Rest Rules for Railway Operating Employees dated February 2011 for those same employees.

Appendix: Additional Guidance & Frequently Asked Questions

Section 2 - Scope

[Return to section 2](#)

Q2.1: What does the DRPR mean for Rail Traffic Controllers?

A2.1: The scope of the DRPR includes employees who are in positions designated critical to safe railway operations and are defined as employees in the rule. The Rail Traffic Controller does not fall into this scope, unless they are involved in the operation or switching of trains, engines, or equipment (e.g., watching the point of a shoving movement).

Q2.2: How does the DRPR impact railway officers?

A2.2: A railway officer must meet the requirements of these rules if they are occupying a position defined in the rule (e.g., conductor or yardman), or if they are involved in the operation or switching of trains, engines, or equipment (e.g., lining switches, giving signals or instructions necessary to control a shoving movement).

Section 6 - General

[Return to section 6](#)

Q6.1: How does the DRPR affect a duty period assignment where an employee has, for example, worked 54 hours cumulative duty period time and the assignment will likely result in the employee exceeding 60 hours?

A6.1: Where an employee's cumulative duty period time totals 54 hours with any new assignment likely resulting in the employee exceeding 60 hours, the employee is required to notify the railway company that the assigned duty period may result in the maximum cumulative duty period time being exceeded, and the railway must ensure that the employee is released from the duty period before the regulatory limits are exceeded.

Section 7 - Maximum Duty Period, Emergency Situations, Deadheading and Re-crews

[Return to section 7](#)

Q7.1: What does this mean in a scenario where an employee is called from the spare board at the home terminal for a rescue at 0800 for a duty period of 8 hours. Is this employee permitted to work another assignment?

A7.1: If the railway does not release the employee, they would be permitted to work another assignment with a duration no greater than 4 hours. The employee is permitted to work a maximum duty period of 12 hours (until 2000 in the above scenario).

Q7.2: What about work assignments in a scenario where a shift is cancelled an hour after an employee reports for duty? Can they work another assignment?

A7.2: This employee would be permitted to work another assignment with a duration no greater than 11 hours. The employee is permitted to work a maximum duty period of 12 hours.

Q7.3: How does the DRPR affect operating duties during shifts as a supervisor?

A7.3: An employee whose preponderance of time is not spent operating is permitted to perform operating duties. All time spent at the service of the railway company in the current shift is used to calculate compliance with the maximum duty period of 12 hours. In addition, the duty period cannot be accepted if the maximum cumulative duty period time under section 9 of these Rules will be exceeded.

Q7.4: How is operating time spent as a supervisor used in the determination of compliance with the 12-hour maximum duty period?

A7.4: All time spent at the service of the railway company, whether operating or not operating, is used in determining compliance with the 12-hour maximum duty period. For example, protecting the leading end of a movement while shoving would be considered “physically involved in the operation or switching of a movement” and cannot be done if the maximum duty period has been exceeded.

Q7.5: Can operating tasks be undertaken after the maximum duty period of 12 hours?

A7.5: Operating tasks cannot be undertaken after the maximum duty period of 12 hours, except as provided in the rules (e.g., an emergency situation). For example, the completion of a pull-by inspection would not be allowed if a duty period has reached 12 hours.

Section 8 – Minimum Rest Periods

[Return to section 8](#)

Q8.1: When does the 12-hour minimum rest period begin at the home terminal?

A8.1: The minimum rest period begins when an employee has been released by the railway from all activity at the home terminal.

Q8.2: When an employee’s shift is cancelled after reporting for duty, are they required to have a rest period?

A8.2: They are not required to have a rest period until they are released by the railway.

Q8.3: When does the minimum rest period apply and how does it impact assignment of an operating crew?

A8.3: The minimum rest period only applies when an employee has been released by the railway from all activity. For example, if an operating crew begins a duty period at 0800 and works to an away from home terminal and is off the train at 1300, the railway could place the crew on a train to work back toward the home terminal, but the crew must not exceed the maximum duty period of 12 hours (until 2000, in this scenario).

Q8.4: Would the minimum rest period begin if an operating crew arrives at the away from home accommodations and a room is not available?

A8.4: In most cases the beginning of the rest period will coincide with the employee arrival at the rest facility. However, if accommodations are not provided to the employee upon arrival, the minimum rest period will not begin until a room is available for use.

Section 9 – Maximum Cumulative Duty Period Time

[Return to section 9](#)

Additional Guidance:

- An employee can be assigned a duty period which may exceed the maximum cumulative duty period times, if it will result in the employee returning to their home terminal for a reset break.
- The calculation of maximum cumulative duty period time is a rolling limit and is not affected by the reset break. Section 10 - Minimum Time Free from Work and Section 9 - Maximum Cumulative Duty Period Time are separate layers to mitigate the risk of fatigue.
- All duty periods in the previous 6 or 27 days and the hours of the current duty period will be used to calculate the cumulative duty period total.
- If an assigned duty period will likely result in the employee exceeding the maximum cumulative duty period limit, an employee may be called but the railway must ensure that the employee is released from the duty period before the maximum cumulative duty period time is exceeded.

Section 10 - Minimum Time Free from Work

[Return to section 10](#)

Additional Guidance:

- It is considered a best practice to provide a reset break that is scheduled and at home, as it provides employees with the ability to plan their time away from work.
- The DRPR include provisions that provide a balance between work assignments and necessary periods away from work. While the rule does not specify the location where the reset break is to be provided, it is Transport Canada's expectation that the rest break be provided at the home terminal. Providing a reset break that is scheduled and at home provides employees with the ability to plan their time away from work, to balance work and personal responsibilities, and is supported by fatigue science. Transport Canada recognizes that there may be special circumstances when it will not be possible to provide the reset break at home (e.g., an emergency, 14 days on/14 days off schedules). For these out of the norm situations, Transport Canada encourages a dialogue that respect the needs and preferences of the employees. TC will seek to clarify its expectations regarding the location of the reset break in the rule when there is an opportunity to do so.

Section 11 – Split Duty[Return to section 11](#)**Additional Guidance:**

1. Split Duty may be used in passenger railway operations where the assignment is scheduled as a split duty shift.
2. The scheduled break must be a minimum of 15 minutes and the employee is away from the operating environment and the employee is not performing any activity at the direction of the railway. If the break is more than three hours, an accommodation must be made available for use.
3. The time of the break is not included in the calculation of the maximum duty period or the calculation of maximum cumulative duty period limits.